Master Services Agreement (synthetic sample)

1. **Definitions**

1.1 In this Agreement, “Business Day” means a day other than a Saturday, Sunday or public holiday in the place of delivery.

1.2 “Charges” means the fees set out in Schedule 2, as varied under clause 6.

1.3 Headings do not affect the interpretation of this Agreement.

2. **Services**

2.1 The Supplier shall provide the Services described in Schedule 1 from the Start Date.

2.2 The Supplier shall meet or exceed the Service Levels set out in Schedule 3.

2.3 The Customer shall give the Supplier reasonable access to its premises during working hours.

2.4 The Supplier shall appoint a named account manager for the Services.

3. **Service credits**

3.1 If the Supplier misses a Service Level, it shall credit the Customer with the amount set out in Schedule 3.

3.2 Service credits are the Customer’s only financial remedy for a missed Service Level.

4. **Charges and payment**

4.1 The Customer shall pay each undisputed invoice within thirty days of receipt.

4.2 Interest on late payments accrues at two per cent above the base rate.

5. **Change control**

5.1 Either party may request a change to the Services by sending a written change request.

5.2 The Supplier shall assess each change request within ten Business Days.

5.3 No change takes effect until both parties have signed a change note.

6. **Records and audit**

6.1 The Supplier shall keep complete and accurate records of the time spent and the materials used.

6.2 The Customer may audit those records once in each Contract Year on fifteen Business Days notice.

7. **Confidentiality**

7.1 Each party shall keep the other party’s Confidential Information secret.

7.2 This clause survives termination of this Agreement for five years.

8. **Liability**

8.1 Neither party limits its liability for death or personal injury caused by its negligence.

8.2 Each party’s total liability in each Contract Year is limited to the Charges paid in that year.

8.3 Neither party is liable for loss of profit or for indirect loss.

9. **Term and termination**

9.1 This Agreement runs for three years from the Start Date.

9.2 Either party may terminate this Agreement on ninety days written notice.